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DISCUSSION

Applicable Law

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322, citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” (*Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc.* (2006) 138 Cal.App.4th 1215, 1219-1220.)

Preliminary Matters

A. Request for Judicial Notice

Defendant asks the Court to take judicial notice of the Complaint, which is a Court record. It is not necessary for the Court to take judicial notice of the Complaint as it is already part of this Court’s record. Nevertheless, this request is GRANTED.

Defendant also asks the Court to take judicial notice of The National Highway Traffic Safety Administration (“NHTSA”) webpage, titled “VIN DECODER.” The Court will take

judicial notice of the website's existence and the existence of the content on its pages, but not the truth of the assertions in those contents.

Analysis

C. Plaintiff’s Song-Beverly Act Claims (First through Fourth causes of action)

Plaintiff's first four causes of action arise under the Song-Beverly Act. "The Song-Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798.) The Song-Beverly Act requires that "[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: [¶] (1)(A) Maintain in this state sufficient service and repair facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of those warranties or designate and authorize in this state as service and repair facilities independent repair or service facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties." (Civ. Code, § 1793.2(a).)

For motor vehicles specifically, "[i]f the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B)." (Civ. Code, § 1793.2(d)(2).)

A single repair attempt for an express warranty vehicle does not trigger the Song-Beverly Act. (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1207-1209 (Silvio).)

i. COA 1: Whether Plaintiff's Express Warranty Claim is Properly Plead

Defendant argues that Plaintiff does not sufficiently plead the failure to repair element of the express warranty claim as she has not adequately pleaded that she gave Honda sufficient opportunities to repair any particular nonconformity, as required to state an express warranty claim. (Mot., p. 3.) Defendant contends that Plaintiff merely parrots the failure to repair element with no facts, pleading that Honda and "its representatives in this state have been unable to service or repair the Vehicle to conform to the applicable express warranties after a reasonable number of opportunities" (Compl. ¶ 27).

In opposition, Plaintiff argues that the express warranty claim is adequately plead because Plaintiff has alleged ultimate facts that she is a buyer of consumer goods (a Honda Civic), Honda provided a warranty, and then failed to honor that warranty. (Complaint, ¶¶ 6-22.) (Opp., p. 2.) Plaintiff argues that "[d]ealerships need to submit repair information to Honda to be reimbursed for their work. Honda keeps records of all the warranty repairs done to this Vehicle. The Vehicle Identification Number alone is sufficient to allow Honda to review its records and prepare its defense." (Ibid.)

In reply, Defendant contends that Plaintiff is applying the incorrect notice pleading standard, and that Plaintiff is in the best position to know the factual basis for her claims—the issues involve her vehicle; the problems she experienced while driving; the date(s) she brought it to a dealership for repairs; the number of times she did so; whether those issues continued afterward; and whether she paid any money out-of-pocket versus covered by warranty. (Reply, pp. 2-3.)

Here, Plaintiff fails to sufficiently allege her express warranty claim. The Court agrees with Defendant that Plaintiff fails to allege the specific defect or nonconformity at issue

(referring only to "transmission defects, engine defects, electrical defects") and fails to allege that she presented her vehicle to an authorized dealership for specific nonconformities on at least two occasions during the warranty period, or that the dealership failed to repair it after those attempts. Plaintiff's opposition refers to compliance with the bare "notice pleading standards" whereby a complaint "will be upheld [against pleading attack] so long as the pleading gives notice of the issues sufficient to enable preparation of a defense." (Opp., p. 2.) The Court cannot agree with Plaintiff that "the Vehicle Identification Number alone is sufficient to allow Honda to review its records and prepare its defense," as the legislature would have set such a bare requirement for lemon law pleadings if it intended to do so.

The Complaint does not even make an effort to identify repair dates or any other basic information required to sustain these claims. "[A] plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity

sufficient to acquaint a defendant with the nature, source and extent of his cause of action.” (Youngman v. Nevada Irrigation District (1969) 70 Cal.2d 240, 245 (Youngman); see also Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099 (Doheny Park Terrace).)

While Plaintiff claims that Defendant is in a superior position to possess information on repairs, Defendant is not the party bringing this action and it is not Defendant’s burden to allege facts sufficient to constitute a cause of action. Plaintiff is on equal footing to at least have knowledge of when and for what reason she presented the Vehicle to Defendant for repairs. Further, while Plaintiff asserts that “the Legislature recently amended the Code of Civil Procedure to impose on manufacturers a duty to provide Plaintiff with the exact information Honda claims is lacking in the Complaint,” Plaintiff concedes that Honda did not opt-in to these

procedures, and it is thus unclear how those procedures are relevant here. (Opp., p. 2.) Plaintiff makes only a conclusory statement that “[r]easonableness and sufficiency are not matters that can be resolved at the pleading stage—they require decision by the finder of fact,” putting forth no legal authority that would prevent the Court from granting the instant Motion on the insufficient facts plead. (Opp., p. 3.)

Therefore, the motion for judgment on the pleadings is GRANTED as to the first cause of action for breach of express warranty. The Court discusses leave to amend below.

ii. COA 2: Whether Plaintiff’s 1793.2(b) Claim is Properly Plead

Section 1793.2, subd. (b) of the SBA provides manufacturers must commence service and repair “within a reasonable time,” and “the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.” (Cal. Civ. Code § 1793.2, subd. (b).)

Defendant argues that Plaintiff has not pleaded that any single repair attempt took more than thirty days to complete. (Mot., p. 3.)

In opposition, Plaintiff does not address this cause of action.

In reply, Defendant points out that Plaintiff failed to oppose the motion insofar as it challenges the Section 1793.2(b) claim. (Reply, p. 4.)

Here, Plaintiff does not sufficiently plead facts for her section 1793.2(b) claim. Plaintiff makes conclusory allegations that “Defendant and its representative failed to commence the service or repairs within a reasonable time and failed to service or repair the Vehicle to conform to the applicable warranties within 30 days. (Complaint, ¶ 33.) Plaintiff fails to allege any facts such as the length of any single repair or that any repair was not performed within thirty days.

Therefore, the motion for judgment on the pleadings is GRANTED as to the second cause of action for violation of 1793.2(b). The Court discusses leave to amend below.

iii. COA 3: Whether Plaintiff’s 1793.2(a)(3) Claim is Properly Plead

A cause of action for violation of subdivision (a)(3) of Civil Code section 1793.2 requires a showing that the manufacturer failed to “[m]ake available to authorized service and repair facilities sufficient literature and replacement parts to effect repairs during the express warranty period.” (Civ. Code, § 1793.2.)

Defendant argues that the FAC does not identify whether Honda allegedly failed to provide service literature and/or replacement parts for their section 1793.2(a)(3) claim. (Mot., p. 3.)

In opposition, Plaintiff does not address this cause of action.

In reply, Defendant argues that Plaintiff's opposition is silent on this issue, so they have thereby conceded any arguments in opposition. (Reply, p. 5.)

Here, Plaintiff does not sufficiently plead facts for her section 1793.2(a)(3) claim. Plaintiff makes conclusory allegations that "Defendant failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Complaint, ¶ 38.) Plaintiff fails to allege any specific facts such as what the literature Honda failed to provide should have pertained to or the parts at issue.

Therefore, the motion for judgment on the pleadings is GRANTED as to the third cause of action for violation of 1793.2(a)(3). The Court discusses leave to amend below.

iv. COA 4: Whether Plaintiff's Implied Warranty Claim is Properly Plead

Defendant argues that Plaintiff's implied warranty claim fails because she does not identify the issue she alleges rendered her Vehicle not merchantable, and she has not pleaded any issue impacting the Vehicle's quality and fitness that arose during the one-year implied warranty duration. (Mot. p. 8.)

In opposition, Plaintiff invokes the latent-defect doctrine under *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, arguing that a latent defect which is not discovered until after the duration of the implied warranty may still show a breach of the implied warranty, and it is not necessary that the Vehicle was undriveable during that period. (Opp., p. 3.)

In reply, Defendant contends that Plaintiff fails to respond to the first argument regarding their failure to allege what rendered their Vehicle not merchantable, thereby conceding it. (Reply, p. 5.) As to the second argument, Defendant challenges Plaintiff's invocation of the latent-defect doctrine under *Mexia*. (Ibid.) Defendant argues that for the latent-defect doctrine to apply, Plaintiff must adequately allege what the latent defect is, and she has not done so, nor has she alleged what rendered her vehicle unmerchantable. (Ibid.)

Here, Plaintiff does not sufficiently plead facts for her implied warranty claim. Plaintiff makes conclusory allegations that "[a]t the time of sale, the subject Vehicle contained one or more latent defect(s) set forth above. The existence of the said defect(s) constitutes a breach of the implied warranty because the Vehicle (1) does not pass without objection in the trade under the contract description, (2) is not fit for the ordinary purposes for which such goods are used, (3) is not adequately contained, packaged, and labelled, and (4) does not conform to the promises or affirmations of fact made on the container or label." (Complaint, ¶ 43.) Plaintiff fails to allege any specific facts such as what the latent defect was, or what exactly rendered their vehicle unmerchantable.

Therefore, the motion for judgment on the pleadings is GRANTED as to the fourth cause of action for violation of implied warranty. The Court discusses leave to amend below.

D. COA 5: Fraudulent Concealment

Defendant argues in the Motion and on Reply that the Fraudulent inducement claim fails. However, Plaintiff voluntarily dismissed this claim on June 12, 2026, after the motion was filed but before Defendant filed a reply. Thus, there is no relief that the Court can grant on this dismissed cause of action.

E. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Ibid.*) Where a pleading is successfully challenged on demurrer, “[t]he plaintiff has the burden of proving that an amendment would cure the defect.” (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.)

Plaintiff requests leave to amend but provides no specifics. (*Opp.*, p. 4.) As leave to amend should be granted whenever there is a reasonable possibility of successful amendment, the Court is prepared to grant it. However, at the hearing, Plaintiff must be prepared to explain in further detail what additional facts she will plead and exactly how she can amend to remedy the deficiencies in the Complaint without making it a sham pleading. The Court will decide at the hearing whether to grant leave to file a First Amended Complaint.

F. Conference Before Amended Pleading or Motion for Judgment on Amended Pleading

“If a court grants a motion for judgment on the pleadings and grants leave to amend, the court may order a conference of the parties before an amended pleading, or a motion for judgment on an amended pleading, may be filed. If the conference is held, the court shall not preclude a party from filing a motion for judgment on the pleadings and the time to file a

motion for judgment on the pleadings shall not begin until after the conference has concluded.” (CCP § 439, subd. (c)(1).) The Court, if it chooses to grant leave to amend, may also order the parties to confer before filing another motion for judgment on the pleadings as to the first-amended complaint.

CONCLUSION

Defendant’s Motion for Judgment on the Pleadings is GRANTED as to the first, second, third, and fourth causes of action.

Leave to amend is conditioned on Plaintiff making the requisite showing at the hearing.

Moving party to give notice.